



POLICE DEPARTMENT

July 24, 2018

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In the Matter of the Charges and Specifications :

- against - :

Police Officer Mildred Velez :

Tax Registry No. 929303 :

1st Precinct :

Case No.

2016-16545

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At:

Police Headquarters
One Police Plaza
New York, New York 10038

Before:

Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department:

Anna Krutaya, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent:

Lisa Pelosi, Esq.
233 Broadway, Suite 2208
New York, NY 10279

To:

HONORABLE JAMES P. O'NEILL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

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CHARGES AND SPECIFICATIONS

1. Said Police Officer Mildred Velez, assigned to 1st Precinct, while off-duty, on or about July 28, 2016, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer engaged in a verbal and physical domestic dispute with another MOS, [REDACTED] Person A, [REDACTED] causing her physical injury.

P.G. 203-10 Page 1, Paragraph 5 GENERAL REGULATIONS -
PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on June 27, 2018.

Respondent, through her counsel, entered a plea of Not Guilty to the subject charge. The Department called Sergeant Anthony Bocola and Detective Person A as witnesses. Respondent testified on her own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having reviewed all of the evidence in this matter, I find Respondent guilty, and recommend a penalty of fifteen (15) vacation days.

ANALYSIS

This case involves an off-duty domestic dispute between Respondent and [REDACTED] Person A on July 28, 2016. They met back in 2002, and have had an on-again, off-again relationship since that time. In 2014, Person A married another woman. Later that same year, Respondent and Person A renewed their intimate relationship. There were discussions between the two about Person A possibly divorcing her wife, but that separation did not come about. It is in this context that the events of July 28 occurred, in the [REDACTED] home of Respondent.

Person A testified that she arrived at Respondent's home at approximately 1230 hours. About an hour-and-a-half later, Respondent sat down on the sofa with Person A wanting to

discuss their relationship. Person A was tired and did not want to talk; instead, she went upstairs intending to get a couple of hours sleep before she would leave to go back to her own home. (Tr. 44, 69-71)

Once upstairs, she realized she had left her cell phone downstairs, which she needed as an alarm to wake her. Person A testified that she returned downstairs to retrieve her phone, and observed Respondent holding it in her hand. Person A took the phone from Respondent and went back upstairs, placing the phone in her bag next to the bed. As she was lying in bed a couple of minutes later, Person A saw Respondent standing there with Person A's phone in her hand again. She asked for the phone back, but Respondent refused, and placed it inside her pocket. (Tr. 45-46)

Person A testified that she asked for her phone about five times to no avail. She was concerned that Respondent might use the phone to call Person A's wife, and so she tried to retrieve the phone from Respondent's pocket, making physical contact with Respondent in the process. Pushing and shoving ensued between the two of them, and as Person A was attempting to grab her phone they both fell to the floor. Person A was upset, and she told Respondent that it was over between them, that she would not leave her wife, and that Respondent would wind up alone. The altercation lasted for a couple of minutes until Person A was able to get the phone back. As Person A was yelling and crying, Respondent, from behind, put her hands around Person A's mouth. Person A said she was sorry, and asked Respondent to stop since she was having difficulty breathing. According to Person A, she was not aware of biting Respondent's finger, but acknowledged that she might have done so. (Tr. 47-51, 68, 71-78)

As a result of this altercation, Person A suffered some bruises and scratches to her body. Four photographs taken by Person A (Dept. Exs. 2A-2D) show what appear to be superficial injuries to Person A's arm, face, and shoulder. Respondent called the [REDACTED] police to the scene, and they both were taken to the precinct where they were interviewed and released

without any criminal charges. The Department brought a disciplinary case against Person A for her participation in the incident, which she resolved prior to this trial. Person A also wrote a check for \$800 to Respondent in order to cover the costs of a window that was allegedly broken during the course of the struggle. (Tr. 52-63)

Respondent testified that by the time of the incident, she was becoming doubtful that Person A actually was going to get a divorce, and felt that Person A was lying to her. Respondent acknowledged that while she was in the living room, she looked at Person A's cell phone, checking to see if there were any conversations between Person A and her wife. Person A came downstairs and asked her not to look at the phone, and so Respondent returned it to Person A's bag. (Tr. 87, 98-101)

Person A went upstairs, and Respondent followed soon after carrying Person A's bag and the laundry, intending to make the bed. Once there, Respondent noticed messages coming through on Person A's phone, and was suspicious that they might be coming from Person A's wife. She took the phone from the bag a second time, which Person A noticed. Person A said that she wanted the phone back, but Respondent placed it in her pants pocket and walked away. According to Respondent, Person A was screaming loudly, with the windows open. Before Respondent had a chance to hand the phone back, Person A came toward her and pushed her back against the window. Respondent fell and tried to cover her face with her hands. Person A bit Respondent's finger, elbowed her in the chest, and punched her in the cheek. Respondent acknowledged that during the altercation, there was pushing and shoving back and forth between them. The struggle ended, and Respondent called 911. Respondent suffered bruises to her left upper chest and left cheek, as well as bite marks on her right middle finger which had to be treated with antibiotics. Photographs depicting these injuries were admitted into evidence (Resp. Exs. A1-A5). (Tr. 88-93, 101, 103-05, 108, 111, 114, 119-20)

It is alleged that Respondent wrongfully engaged in a verbal and physical dispute with Person A, during which Person A was injured. It is undisputed that the two did, in fact, engage in an altercation. From the testimony of the disputants and the photographs in evidence, each of them received minor injuries: Person A suffered superficial scratch marks beneath her right nostril and near her right shoulder, and bruises to her right arm, while Respondent suffered superficial bruises to her upper left chest and cheek, and bite marks on her right middle finger, which later was infected.

There was agreement between the parties in their general description of what transpired, though they differed on some of the details, each attempting to portray the other as more culpable. Both had inconsistencies in their accounts. Person A, for instance, did not initially tell police that Respondent placed her hand over Person A's mouth; Person A explained at trial that she had not wanted to cause further trouble for them by reporting something that might lead to their arrests. Respondent, meanwhile, initially omitted any reference to being elbowed in the chest, and receiving a punch in her jaw, details that later became part of her account.

Counsel on both sides spent a great deal of time arguing as to who was the initial aggressor, but under the totality of circumstances here that is somewhat beside the point. Each of the participants in this incident is responsible for the unfortunate altercation that occurred, which could have been avoided with more measured decision-making by both parties involved. This tribunal is mindful of the frustration that Respondent was feeling in connection with her relationship with Person A. However, the manner in which she chose to deal with that frustration was not appropriate for a long-time member of the Department. Respondent twice took Person A's cell phone because she was suspicious of Person A's communications with her wife. After the second time, Respondent refused to return the phone. I reject Respondent's self-serving excuse that she did not have a chance to return it, in light of the credible evidence that Person A repeatedly

asked for her phone back, and Respondent's own admission that she walked away from Person A with the phone. Respondent then engaged in a physical altercation with Person A that included pushing and shoving by both disputants, resulting in minor injuries to each of them. The credible evidence has established that Respondent's conduct here was prejudicial to the good order and discipline of the Department, and I find her guilty.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on July 2, 2001. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum. Respondent has no disciplinary record.

The Department Advocate recommends a penalty of twenty (20) vacation days, but a lower penalty is appropriate here. To be sure, this tribunal recognizes that there needs to be accountability for Respondent's participation in the verbal and physical altercation that occurred. Respondent's frustration over her relationship with Person A was no excuse for her behavior here. However, the specific facts of this case do not warrant the higher penalty sought. This domestic dispute was brief in duration, and resulted in superficial injuries. Respondent, herself, called 911, and she also notified Operations.

In *Disciplinary Case No. 2016-16675* (Nov. 28, 2017), a 19-year Detective with no disciplinary record negotiated a penalty of fifteen (15) vacation days for engaging in a verbal and physical altercation with his [REDACTED] at her apartment. There, the respondent also failed to notify the patrol supervisor after the dispute, and failed to remain at the scene. In *Disciplinary Case No. 2017-16917* (Nov. 3, 2017), a five-year police officer with no disciplinary record

negotiated a penalty of fifteen (15) vacation days for engaging in a physical altercation with [REDACTED], and temporarily preventing her from calling 911. There, the respondent pushed [REDACTED] onto the bed and attempted to hold her there after she initially attacked him. In *Disciplinary Case No. 2016-16281* (June 8, 2017), a 10-year police officer with no disciplinary record negotiated a penalty of fifteen (15) vacation days for an off-duty physical altercation with another MOS at a retirement party.

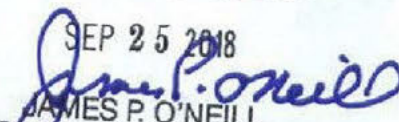
Taking into account the totality of facts and circumstances in this matter, I recommend that Respondent forfeit fifteen (15) vacation days.

Respectfully submitted,



Jeff S. Adler
Assistant Deputy Commissioner Trials

APPROVED

SEP 25 2018

JAMES P. O'NEILL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER MILDRED VELEZ
TAX REGISTRY NO. 929303
DISCIPLINARY CASE NO. 2016 16545

Respondent was appointed to the Department on July 2, 2001. On her last three annual performance evaluations, she received 3.5 overall ratings of "Highly Competent/Competent" in 2014, 2015 and 2016. Respondent has received one medal for Excellent Police Duty and two medals for Meritorious Police Duty. [REDACTED]

Respondent has no disciplinary history. In connection with the charged misconduct, she was placed on Level I Discipline Monitoring on February 13, 2017. Monitoring remains ongoing.

For your consideration.

Jeff S. Adler

Assistant Deputy Commissioner Trials